

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice S M Kuddus Zaman

CIVIL REVISION NO. 1275 OF 2023

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure.

And

Dr. Sheikh Tarek Al Rashed

... Petitioner

-Versus-

Rumana Hyder Liza

... Opposite party

None appears

.... For the petitioner.

Mr Mohammad Anisuzzaman, Advocate

.... For the opposite party.

Heard and Judgment on 04.09.2024.

This Rule was issued calling upon the opposite party to show cause as to why the judgment and decree dated 27.02.2023 passed by the learned Joint District Judge, 1st Court, Gopalganj in Family Appeal No.04 of 2022 dismissing the appeal and affirming the judgment and decree dated 30.05.2022 passed by the learned Family Court, Kotalipara, Gopalganj in Family Suit No.12 of 2021 decreeing the suit should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the opposite parties as plaintiffs instituted Family Suit No.12 of 2022 for recovery of dower of Tk.4,05,000/- and

maintenance both for iddat period and past maintenance for 7 months 19 days amounting to Tk.1,52,666/-

It was alleged that the defendant married the plaintiff by by a registered kabinama on 31.05.2020 for dower of Taka 5,00,000/-. The defendant and members of his family demanded dowry of Tk.25,000/- from the plaintiff and due to her refusal to pay the same drove her away from the house of the defendant.

Defendant contested above suit by filing a written statement alleging that he had divorced the plaintiff by talak on 01.03.2021 and plaintiff was paid prompt dower.

At trial plaintiff examined two witnesses and document of the plaintiff were marked as Exhibit No.1. On the other hand defendant himself gave evidence as sole defendant witness and produced and proved two documents which was marked as Exhibit Nos.1 and 2.

On consideration of submissions of the learned Advocate for the respective parties the learned Judge of the family Court decreed the suit for Tk.4,50,000/- as dower and granted maintenance to the plaintiff only during her iddat period at the rate of Tk.17,000/- per month.

Being aggrieved by and dissatisfied with the above judgment and decree of the Family Court the defendant preferred Family Appeal No.4 of 2022 to the District Judge which was heard by the learned Joint

District Judge, 1st Court who dismissed above appeal and affirmed the judgment and decree of the trial Court.

Being aggrieved by above judgment and decree of the Court of Appeal below above appellant as petitioner moved to this Court and obtained this Rule.

No one appears on behalf of the petitioner at the time of hearing of this Rule.

Mr. Mohammad Anisuzzaman, learned Advocate for the opposite party submits that while giving evidence as PW1 the plaintiffs produced and proved the registered kabinnama of her marriage with the defendant which was marked as Exhibit No.1. On the basis of above Exhibit No.1 the learned Judge of the Family Court granted dower of Tk.4,50,000/- to the plaintiff. As far as maintenance is concerned the learned Judge did not allow any past maintenance but granted maintenance only for her iddat period. At appeal the appellant did not dispute the rate of monthly maintenance fixed by the learned Judge of the Family Court. On consideration of the materials on record the learned Judge of the Court of Appeal below has rightly dismissed the appeal and upheld the judgment and decree of the Family Court which calls for no interference.

I have considered the submissions of the learned Advocate for the opposite party and carefully examined all materials on record.

The plaintiff gave evidence as PW1 and produced and proved the kabinnama of her marriage with the defendant which was marked as Exhibit No.1. The defendant did not challenge the legality and authenticity of Exhibit No.1, Exhibit No.1 shows that the dower of the plaintiff was fixed at Taka 5,00,000/- and Tk.15,000/- was paid. As such the plaintiff is entitled to get Tk.4,50,000/- as her unpaid dower.

It has been claimed by the defendant that the dower of the plaintiff was paid but above claim of the defendant is contrary to Exhibit No.1 as mentioned above and since the plaintiff party to above document he cannot give evidence against any term of above document without any allegation of error or fraud. The defendant did not make out a case that above kabinnama Exhibit No.1 was prepared by practicing fraud upon the defendant or the some of the dower was written erroneously. Moreover, the defendant could not prove his claim that the dower was paid by any documentary or oral evidence of competent witness.

As such the learned Judges of the Courts below have rightly and concurrently found that the dower of the plaintiff was fixed at Tk.5,00,000/- and Tk.50,000/- was paid and plaintiff is entitled to get

Tk.4,50,000/- as dower. Above concurrent findings of fact arrived at by the learned Judges of the Courts below being based on evidence on record this Court cannot in its revisional jurisdiction interfere with the same.

As far as the granting of maintenance to the plaintiff is concerned the learned Joint District Judge has stated in his judgment that the appellant did not raise any objection against the maintenance for iddat period at the rate of Tk.17,000/-.

It turns out from the record that the defendant is a Doctor by profession and the plaintiff was not granted any past maintenance. As such fixing of Tk.17,000/- as monthly maintenance for plaintiff only for her iddat period appears to be justified and reasonable.

In above view of the materials on record I am unable to find any infirmity or illegality in the impugned judgment and decree passed by the learned Judge of the Court of Appeal below nor I do not find any substance in this application under 115(1) of the Code of Civil Procedure and the Rule issued in this connection is liable to be discharged.

Accordingly, the Rule is hereby discharged. The order of stay granted at the time of issuance of the Rule is hereby recalled and vacated.

However, there is no order as to costs.

Send down the lower Court's record immediately.

MD. MASUDUR RAHMAN
BENCH OFFICER